

Board of Zoning Appeals - November 20th, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=W6sPW48UAa4
Publication Date	2025-11-21T12:22:34Z
Target Category	delaware_county

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Delaware Muncie Metropolitan Board of Zoning Appeals Meeting Summary

Meeting Date: November 20, 2025

Body: Board of Zoning Appeals

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order by the presiding officer for the November meeting of the Delaware Muncie Metropolitan Board of Zoning Appeals [00:00:11](#).
- **Attendance:**
 - **Present:** Mr. Billington, Mr. Ivy, Miss Knap, Miss Matthew (4 members present; quorum established [00:01:07](#)).
 - **Absent/Not Listed:** Miss Brandon, Miss Frri, Miss Kaiser.
 - **Presiding Officer:** Identified as the Chair/Board Chair.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Kylen [00:00:20](#).
 - **Approval of Minutes:** Consideration of the September and October regular monthly meeting minutes was tabled due to a technical glitch preventing access [00:01:28](#).
 - **Procedural Adjustments:**
 - The board voted to consolidate multiple cases involving Muncie City View Homes 2 LLC into a single package and move them up to the second item on the agenda [00:05:47](#), [00:07:27](#).
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4. Substantive Business & Board Action

[00:08:03](#) BZA 55-25: Paula and Chad Hoffetter

- **Sponsor / Presenter:** Paula Hoffstader
 - **Deliberation Summary:** Request for a variance of use to keep poultry in a residence zone, display a sign advertising fresh eggs, maintain a second dwelling/guest house, and allow reduced square footage for the second dwelling at 10608 North Kirby Avenue, Hamilton Township [00:08:20](#). The applicant explained the structures include small sheds and a hobby space with a mini-split for their son Attekus, who experiences medical seizures and enjoys being in a temperature-regulated environment mimicking the outdoors [00:09:51](#). County Building Commissioner Tom Fouch clarified that the structure cannot serve as a living quarter without proper foundations, but is acceptable as a shed/hobby space or coop without pursuing fines [00:10:23](#), [00:18:48](#). The egg-selling component of the request was clarified to be offering/giving away excess eggs rather than commercial sale [00:14:43](#).
 - **Item-Specific Public Input:** None during the public hearing portion.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:20:36](#).
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[00:21:34](#) BZA 57-25 through BZA 62-25: Muncie City View Homes 2 LLC (Consolidated Package)

- **Sponsor / Presenter:** Damen Brown with Pivotal Housing Partners [00:25:16](#)
- **Deliberation Summary:** Requests for decreased front setbacks and reduced side street setbacks for newly built dwellings on corner lots and residential parcels across multiple locations:
 - [00:22:48](#) 401 East 8th Street (BZA 57-25)
 - [00:22:49](#) 409 East 8th Street (BZA 58-25)
 - [00:23:00](#) 1107 East 7th Street (BZA 59-25)

- 00:23:33 1204 South Franklin Street (BZA 60-25)
- 00:24:08 1711 South Madison Street (BZA 61-25)
- 00:24:40 125 East 8th Street (BZA 62-25)

The variances were necessitated based on as-built surveys completed after construction, carrying over conditions from previous variances (BZA 16-21) 00:25:33, 00:26:09.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by Voice Vote 00:28:09.

00:28:38 BZA 56-25: Andrew Collins

- **Sponsor / Presenter:** Andrew Collins (Property Owner) 00:29:16
- **Deliberation Summary:** Request for variances to allow an increased height (25 feet requested) for an accessory structure and to allow total square footage of accessory structures (a 44x60 pole barn connected to a detached garage totaling 2,640 sq. ft.) to exceed that of the dwelling at 6320 North County Road 600 West, Harrison Township 00:28:51, 00:29:24. The owner stated the space is for dry storage, personal vehicle maintenance, and teaching his children 00:29:55. Board members questioned the necessity given existing outbuildings and potential runoff impacts.
- **Item-Specific Public Input:**
 - **Chris Ditchman** 00:39:52 (Speaking in opposition): Noted a lack of unique hardship, cited extensive existing parking capacity across current outbuildings, and argued the request is based on personal preference rather than necessity.
 - **Patrick Meeks** 00:37:36 (Speaking in opposition): Stated the structure creates a financial hardship and negative impact on neighboring home values after he complied strictly with residential codes for his own garage.
 - **Tiffany & Chris Carrian** 00:40:04, 00:45:10 (Speaking in opposition): Noted severe watershed and standing water issues from the property that funnel into neighboring front yards, expressing concern that a larger structure and raised pad will increase drainage runoff.
 - **Jessica Fulbright** 00:46:46 (Speaking in opposition): Noted concerns regarding a recently installed electric fence and potential future livestock uses.
- **Action & Vote Disposition:** Failed to reach a unanimous/required fiscal action (1 Yes, 2 No, 1 Abstain). **Automatically continued** to the next meeting on December 18, 2025, at 6:00 PM 00:54:21.

5. Open Public Comment / Citizen Forum

Note: Public comments occurred as part of individual case public hearings (documented under Section 4 above). No general open forum separate from agenda items was conducted.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Rules of Procedure:** Board members agreed to review redlined edits to the BZA rules of procedure via email circulation before the next meeting 00:57:12.
 - **Director's Report:** Staff reviewed year-to-date building permit numbers (712 permits total; \$133,778.59 in fees), commercial developments (Foundry Row Apartments, Dollar General on SR 67), upcoming 2026 MPO co-hosting duties with Anderson and Kokomo, APA conference takeaways regarding public spaces and economic development, approval of the Delaware County Pond Ordinance (Nov 3), and an upcoming comprehensive zoning ordinance revision RFP process (12-18 month timeline) 00:58:18.
 - **Meeting Schedule:** The 2026 meeting schedule was approved by voice vote 10:06:00.
 - **Community Events:** Cardinal Greenway Turkey Trot on Thanksgiving morning (Nov 27); ECIRPD winter clothing drive for local veterans; Second Harvest Food Bank donation box in the county building lobby 10:06:15.
- **Adjournment:** The meeting was officially adjourned 01:08:37.

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